Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2259]

ALASKA

Reserving Lands for Use of the Alaska Railroad, and the Federal Aviation Agency; Partly Revoking Executive Order No. 4778 of December 5, 1927 (Indian Reserve, Eklutna)

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority vested in the Secretary of the Interior by section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), as amended, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn, as indicated:

(a) Under the jurisdiction of the Department of Interior, from all forms of appropriation under the public land laws, including the mining and mineral leasing laws but not disposals of materials under the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601–604), as amended, for use of the Alaska Railroad for railroad purposes:

[Anchorage 024207]

SEWARD MERIDIAN

T. 16 N., R. 1 W.,
Sec. 24: S½NE¼SW¼, SE¼SW¼, and that part of the S½NW¼SE¼ lying northwesterly of the right-of-way of the Alaska Railroad.

The areas described aggregate 63.20 acres.

(b) Under the jurisdiction of the Federal Aviation Agency, from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws, nor disposals of materials under the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601–604), as amended, in the maintenance of air navigation facilities, for a radio transmitting station:

[Anchorage 024222]

SEWARD MERIDIAN

T. 16 N., R. 1 E.,
Sec. 19; E½SE¼NW¼.

The tract described contains 20 acres.

2. Executive Order No. 4778 of December 5, 1927, as amended by Executive Order No. 6734 of June 8, 1934, which withdrew lands at Eklutna, Alaska, for use of the United States Bureau of Education for educational purposes is hereby revoked so far as it effects any of the lands described in paragraph 1 of this order.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

FEBRUARY 3, 1961.

[F.R. Doc. 61–1143; Filed, Feb. 9, 1961; 8:46 a.m.]

[Public Land Order 2260]

[Sacramento 060744]

[Sacramento 064640]

CALIFORNIA

Withdrawing Lands for Use of Department of the Army for Flood Control Purposes

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in California, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral leasing laws, and reserved for use of the Department of the Army for flood control purposes in connection with the construction, operation, and maintenance of the New Hogan Dam and Reservoir, authorized by the act of December 22, 1944 (58 Stat. 887):

MOUNT DIABLO MERIDIAN

T. 3 N., R. 11 E.,
Sec. 6; that portion of the SW¼SE¼ lying east of Alice No. 1 Mine, M.S. No. 5099, and West of Lot 9;
Sec. 17; lot 14;
Sec. 18; E½W½NE¼.
T. 4 N., R. 11 E.,
Sec. 13; lot 1, exclusive of patented Mineral Survey 5956, and lot 2;
Sec. 20; E½ of lot 5, E½ of lot 8.

The areas described aggregate 179.84 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

FEBRUARY 6, 1961.

[F.R. Doc. 61–1144; Filed, Feb. 9, 1961; 8:46 a.m.]

Title 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

SUBCHAPTER T—OPERATION AND MAINTENANCE

PART 221—OPERATION AND MAINTENANCE CHARGES

Wapato Indian Irrigation Project, Yakima Indian Reservation, Washington

FEBRUARY 1, 1961.

On December 30, 1960, there was published in the daily issue of the FEDERAL REGISTER, Volume 25, Number 253, page 13980, notice of intention to amend § 221.86, Subchapter T, Chapter I of the Code of Federal Regulations Title 25. This section deals with the operation and maintenance charges on assessable lands under the Wapato Indian Irrigation Project, Yakima Indian Reservation, Washington. Interested persons were thereby given opportunity to participate in preparing the proposed amendment by submitting their views and data or argument in writing to Don C. Foster, Area Director, within thirty days from the date of publication of the notice. Written comments, unsupported by factual data, were received from the Yakima Tribal Council. After giving due consideration to these comments, it was determined that sufficient justification existed for the proposed rate increase and, accordingly, § 221.86 of Title 25, Code of Federal Regulations, Chapter I, Bureau of Indian Affairs, Subchapter T, is amended as follows:

§ 221.86 Charges.

Pursuant to the provisions of the acts of August 1, 1914, and March 7, 1928 (38 Stat. 583, 45 Stat. 210; 25 U.S.C. 385, 387), the operation and maintenance charges on assessable lands under the Wapato Indian Irrigation Project, Yakima Indian Reservation, Washington, for the calendar year 1961 and subsequent years until further notice are hereby fixed as follows:

(a) Minimum charges for all tracts in noncontiguous single ownership	$7.25
(b) Flat rate upon all farm units or tracts for each assessable acre	7.00
(c) Storage operation and maintenance. For all lands with a storage water right, known as "B" lands, in addition to other charges per acre	.50

DON C. FOSTER,
Area Director.

[F.R. Doc. 61–1142; Filed, Feb. 9, 1961; 8:46 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 61–153]

PART 1—PRACTICE AND PROCEDURE

Forfeitures by Broadcast Licensees and Permittees

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 2d day of February 1961;

The Commission having under consideration Public Law 86–752, 86th Congress, 2d Session, which was enacted into law on September 13, 1960, and the necessity for promulgating rules to implement amendments to sections 503 and 504 of the Communications Act of 1934 (as previously amended) contained in that law;

It appearing that the amendments to the rules ordered herein implementing the new provisions of sections 503 and 504 of the Act are procedural in nature,